

RESTRICTED USE PESTICIDE
DUE TO TOXICITY TO NON-TARGET INVERTEBRATES, MAMMALS, FISH AND AQUATIC ORGANISMS
AND
DUE TO CORROSIVENESS TO THE EYE

For retail sale to and use only by Certified Applicators, or persons under their direct supervision, and only for those uses covered by the Certified Applicator's certification.

BIFENTHRIN	GROUP	3A	INSECTICIDE
ABAMECTIN	GROUP	6	INSECTICIDE



INSECTICIDE/NEMATICIDE

FOR AT PLANT USE ON FIELD CORN (GRAIN AND SILAGE and GROWN FOR SEED) AND POPCORN

ACTIVE INGREDIENT:

Weight %

Bifenthrin: (2-methyl [1,1'-biphenyl]-3-yl)methyl 3-(2-chloro-3,3,3-trifluoro-1-propenyl)-
2,2-dimethylcyclo-propanecarboxylate* 25.4%

Abamectin 4.26%

INERT INGREDIENTS: 70.34%

TOTAL: 100.0%

**Cis isomers 97% minimum, trans isomers 3% maximum.*

This emulsifiable concentrate liquid product contains 2.1 lbs bifenthrin and 0.35 lbs abamectin per gallon.

Contains petroleum distillates.

KEEP OUT OF REACH OF CHILDREN
DANGER/PELIGRO

Si usted no entiende la etiqueta, busque a alguien para que se la explique a usted en detalle.
(If you do not understand the label, find someone to explain it to you in detail.)

FIRST AID	
If in eyes	• Hold eye open and rinse slowly and gently with water for 15-20 minutes. • Remove contact lenses, if present, after the first 5 minutes, then continue rinsing eye. • Call a poison control center or doctor for treatment advice.
If swallowed	• Immediately call a poison control center or doctor. • Do not induce vomiting unless told to by a poison control center or doctor. • Do not give any liquid to the person. • Do not give anything by mouth to an unconscious person.
If on skin or clothing	• Take off contaminated clothing. • Rinse skin immediately with plenty of water for 15-20 minutes. • Call a poison control center or doctor for treatment advice.
If inhaled	• Move person to fresh air. • If person is not breathing, call 911 or ambulance, then give artificial respiration, preferably mouth to mouth if possible. • Call a poison control center or doctor for further treatment advice.

EMERGENCY INFORMATION	
Have the product container or label with you when calling a poison control center or doctor, or going for treatment.	
FOR THE FOLLOWING EMERGENCIES, PHONE 24 HOURS A DAY:	
For Medical Emergencies phone:	1-888-681-4261
For Transportation Emergencies, including spill, leak or fire, phone: CHEMTREC®	1-800-424-9300
For Product Use Information phone: AMVAC®	1-888-462-6822
For non-emergency information on this product, contact the National Pesticides Information Center (NPIC) at 1-800-858-7378. Monday through Friday, 8 AM to 12 PM PST. or at http://npic.orst.edu .	
NOTE TO PHYSICIAN	
Note to Physician: Probable mucosal damage may contraindicate the use of gastric lavage. Contains petroleum distillate - Vomiting may cause aspiration pneumonia. This product is a pyrethroid. If large amounts have been ingested, the stomach and intestine should be evacuated. Treatment is symptomatic and supportive. Digestible fats, oils, or alcohol may increase absorption and so should be avoided. Early signs of intoxication include mydriasis (dilated pupils), ataxia (unsteadiness), and muscle tremors. Toxicity following accidental ingestion of DURO LQ can be minimized by promptly administering activated charcoal. If toxicity from exposure has progressed to cause severe vomiting, the extent of resultant fluid and electrolyte imbalance should be gauged. Appropriate supportive parenteral fluid replacement therapy should be given, along with other required supportive measures (such as maintenance of blood pressure levels and respiratory functionality) as indicated by clinical signs, symptoms, and measurements. In severe cases, observations should continue for at least several days until clinical condition is stable and normal. Since abamectin is believed to enhance GABA activity in animals, it is probably wise to avoid drugs that enhance GABA activity (barbiturates, benzodiazepines, valproic acid) in patients with potentially toxic abamectin exposure.	

See inside booklet for complete Precautionary Statements Directions for Use and Storage and Disposal

EPA Reg. No. 5481-692

Net Contents: _____

EPA Est. No. _____

Scan for Spanish Escanee para español



AMVAC Chemical Corporation
4695 MacArthur Court, Suite 1200
Newport Beach, CA 92660 U.S.A.
1-888-462-6822

PRECAUTIONARY STATEMENTS

HAZARDS TO HUMANS AND DOMESTIC ANIMALS

DANGER

Corrosive. Causes irreversible eye damage. May be fatal if swallowed. Do not get in eyes or on clothing. Wear protective eyewear. Wash thoroughly with soap and water after handling and before eating, drinking, chewing gum, using tobacco, or using the toilet. Remove and wash contaminated clothing before reuse.

PERSONAL PROTECTIVE EQUIPMENT (PPE)

Mixers, loaders and applicators must wear at a minimum:

- Long-sleeved shirt and long pants, and
- Chemical-resistant gloves made of barrier laminate or Viton® ≥ 14 mils.
- Shoes plus socks
- Protective eyewear.

User Safety Requirements

Follow manufacturer's instructions for cleaning/maintaining PPE. If no such instructions for washables exist, use detergent and hot water. Keep and wash PPE separately from other laundry.

Discard clothing and other absorbent materials that have been drenched or heavily contaminated with this product's concentrate. Do not reuse them.

USER SAFETY RECOMMENDATIONS

- Users should remove clothing/PPE immediately if pesticide gets inside. Then wash body thoroughly and put on clean clothing.
- Users should remove PPE immediately after handling this product. Wash the outside of gloves before removing. As soon as possible, wash thoroughly and change into clean clothing.

ENVIRONMENTAL HAZARDS

This pesticide is extremely toxic to fish and aquatic invertebrates and toxic to wildlife. Use of this product may pose a risk to threatened and endangered species of fish, amphibians, crustaceans (including fresh water shrimp), and insects.

Use with care when applying in areas adjacent to any body of water. Do not apply directly to water, to areas where surface water is present or to intertidal areas below the mean high-water mark. Do not contaminate water when disposing of equipment wash water or rinsate. Rinsing application equipment over the treated area will help avoid run off to water bodies or drainage systems.

This product may impact surface water quality due to runoff of rainwater. To protect the environment, do not allow pesticide to enter or run off into storm drains, drainage ditches, gutters or surface waters. This is especially true for poorly draining soils and soils with shallow ground water. This product is classified as having a medium potential for reaching both surface water and aquatic sediment via runoff for several weeks to months after application.

Runoff from treated areas may be hazardous to aquatic organisms in neighboring areas. Applying this product when rain is not predicted for the next 24 hours will help ensure that rain does not wash pesticide off the treatment area.

This product is highly toxic to bees exposed to direct treatment or residues on blooming crops or weeds. Do not apply this product or allow it to drift to blooming crops or weeds if bees are visiting the treatment area.

In **New York State** this product may not be applied within 100 feet (using ground equipment) of coastal marshes or streams that drain into coastal marshes.

DIRECTIONS FOR USE

RESTRICTED USE PESTICIDE

It is a violation of Federal law to use this product in a manner inconsistent with its labeling.

Do not apply this product in a way that will contact workers or other persons, either directly or through drift. Only protected handlers may be in the area during application.

Do not use or store near heat or open flame.

RESISTANCE MANAGEMENT

For resistance management, please note that DURO LQ contains both a Group 3A insecticide and Group 6 insecticide/nematicide. Any insect/nematode population may contain individuals naturally resistant to DURO LQ and other Group 3A or Group 6 insecticides/nematicides. The resistant individuals may dominate the insect/nematode population if these insecticides/nematicides are used repeatedly in the same fields. Appropriate resistance-management strategies should be followed.

To delay target pest resistance, take the following steps:

- Rotate the use of DURO LQ or other Group 3A and Group 6 insecticides/nematicides within a growing season, or among growing seasons, with different groups that control the same pests.
- Use tank mixtures with insecticides/nematicides from a different group that are equally effective on the target pest when such use is permitted. Do not rely on the same mixture repeatedly for the same pest population. Consider any known cross-resistance issues (for the targeted pests) between the individual components of a mixture. In addition, consider the following recommendations provided by the Insecticide Resistance Action Committee (IRAC):

- Individual insecticides selected for use in mixtures should be highly effective and be applied at the rates at which they are individually registered for use against the target species.
- Mixtures with components having the same IRAC mode of action classification are not recommended for insect resistance management.
- When using mixtures, consider any known cross-resistance issues between the individual components for the targeted pest(s).
- Mixtures become less effective if resistance is already developing to one or both active ingredients, but they may still provide pest management benefits.
- The insect resistance management benefits of an insecticide mixture are greatest if the two components have similar periods of residual insecticidal activity. Mixtures of insecticides with unequal periods of residual insecticide activity may offer an insect resistance management benefit only for the period where both insecticides are active.
- Adopt an integrated pest management program for insecticide/nematicide use that includes scouting, uses historical information related to pesticide use, crop rotation, record keeping, and which considers cultural, biological and other chemical control practices.
- Monitor after application for unexpected target pest survival. If the level of survival suggests the presence of resistance, consult with your local university specialist or certified pest control advisor.
- Contact your local extension specialist or certified crop advisors for any additional pesticide resistance-management and/or IPM recommendations for the specific site and pest problems in your area.
- For further information or to report suspected resistance contact AMVAC at 1-888-462-6822 or at www.AMVAC.com.

AGRICULTURAL USE REQUIREMENTS

Use this product only in accordance with its labeling and with the Worker Protection Standard, 40 CFR part 170. This Standard contains requirements for the protection of agricultural workers on farms, forests, nurseries and greenhouses, and handlers of agricultural pesticides. It contains requirements for training, decontamination, notification, and emergency assistance. It also contains specific instructions and exceptions pertaining to the statements on this label about personal protective equipment (PPE), and restricted-entry interval, and notification to workers. The requirements in this box only apply to uses of this product that are covered by the Worker Protection Standard.

Do not enter or allow worker entry into treated areas during the restricted entry interval (REI) of 12 hours.

Exception: If the product is soil injected or soil incorporated, the Worker Protection Standard under certain circumstances, allows workers to enter the treated area without restrictions if there will be no contact with anything that has been treated.

PPE required for early entry to treated areas (that is permitted under the Worker Protection Standard and that involves contact with anything that has been treated, such as plants, soil, or water), is:

- Long-sleeved shirt and long pants;
- Shoes plus socks;
- Chemical-resistant gloves made of barrier laminate or Viton $\geq$ 14 mils; and
- Protective eyewear.

For any requirements specific to your State, consult the agency responsible for pesticide regulation.

CROP USE INFORMATION

DURO LQ is a liquid soil insecticide for use on field corn and popcorn at planting for the control of corn rootworm larvae and seed attacking pests, and early season protection from moderate or variable corn nematode populations.

VEGETATIVE FILTER STRIPS

Construct and maintain a vegetative filter strip, according to the width specified below, of grass or other permanent vegetation between the field edge and nearby down gradient aquatic habitat (such as, but not limited to, lakes; reservoirs; rivers; streams; marshes or natural ponds; estuaries; and commercial fish farm ponds).

Only apply products containing bifenthrin onto fields where a maintained vegetative filter strip of **at least 25 feet** exists between the field edge and where a down gradient aquatic habitat exists. This minimum required width of 25 feet may be reduced or removed under the following conditions:

For Western irrigated agriculture, a maintained vegetative filter strip of at least 10 feet wide is required. Western irrigated agriculture is defined as irrigated farmland in the following states: WA, OR, CA, ID, NV, UT, AZ, MT, WY, CO, NM, and TX (west of I-35).

For Western irrigated agriculture, if a sediment control basin is present, a vegetative filter strip is not required. In all other areas, a vegetative filter strip with a minimum width of 25 feet is required, unless the following conditions are met. The vegetative filter strip requirement may be reduced from 25 feet to 15 feet if at least one of the following applies:

- The area of application is considered prime farmland (as defined in 7 CFR § 657.5).
- Conservation tillage is being implemented on the area of application. Conservation tillage is defined as any system that leaves at least 30% of the soil surface covered by residue after planting. Conservation tillage practices can include mulch-till, no-till, or strip-till.
- A functional terrace system is maintained on the area of application.
- Water and sediment control basins for the area of application are functional and maintained.
- The area of application is less than or equal to 10 acres.

For further guidance on vegetated filter strips, refer to the following publication for information on constructing and maintaining effective buffers: Conservation Buffers to Reduce Pesticide Losses. Natural Resources Conservation Services. <https://www.regulations.gov/document?D=EPA-HQ-OPP-2008-0331-0175>

RUNOFF PREVENTION

To protect the environment, do not allow pesticide to enter or run off into storm drains, drainage ditches, gutters or surface waters. Applying this product in calm weather when rain is not predicted for the next 24 hours will help ensure that wind or rain does not blow or wash pesticide off the treatment area. Rinsing application equipment over the treated area will help avoid run off to water bodies or drainage systems.

Herbicide Compatibility Information

All registered corn herbicides may be applied to corn which will be treated or has been treated. DURO LQ is not systemic and will not interact with any registered corn herbicides.

Use Restrictions

Use Site and Application Method Restrictions

- **Do not** use to treat plants grown for transplanting. This product is not for use in nurseries, plant propagation houses, or greenhouses by commercial transplant producers on plants being grown for transplanting.
- **Do not** use to treat crops grown in greenhouse for harvest.
- **Do not** apply through chemigation.
- **Do not** use on residential landscapes or in residential areas.

Rotational Crop Restrictions

Crops for which bifenthrin tolerances exist may be rotated at any time. All other crops may be rotated 30 days following the final application of bifenthrin. Abamectin has no rotational (plant-back) restrictions.

APPLICATION INSTRUCTIONS

CORN, FIELD (GRAIN AND SILAGE), FIELD CORN GROWN FOR SEED, POPCORN (AT PLANT USE)			
PEST	Application Rate fl oz/1000 row ft	Application Rate fl oz/A*	Application Rate lb ai/A*
Corn Rootworm Larvae (Northern, Western, Southern)	0.55 - 0.69	9.6 – 12.0	0.16 - 0.2 lbs bifenthrin 0.027- 0.033 lbs abamectin
Corn Nematodes (Early Season Protection)			

White Grub Wireworm Seed Corn Maggot Seed Corn Beetle Grape Colaspis	0.34 - 0.69	5.9 – 12.0	0.1 - 0.2 lbs bifenthrin 0.016 – 0.033 lbs abamectin
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REMARKS and USE RESTRICTIONS

*For 30-inch row spacing.

For best early season protection of corn nematodes apply the maximum rate of DURO LQ.

Do not apply product at less than one inch depth in furrow.

Maximum Single application rate: Do not apply more than 12 fl. oz. per acre per application.

Maximum annual application rates:

Do not apply more than 0.2 lbs bifenthrin/A/calendar year as an at plant application from all bifenthrin-containing products.

Do not exceed 0.033 lb abamectin/A/calendar year as a soil application including seed and in-furrow treatments from all abamectin-containing products.

Do not exceed 0.3 lb bifenthrin per acre per season including at-plant, PRE, PPI, and foliar applications from all bifenthrin-containing products.

Determining the Amount of DURO LQ per Acre

To determine the approximate amount of DURO LQ needed per acre, select the rate in fluid ounces per 1,000 row feet and the row spacing as shown in the following chart:

DURO LQ INSECTICIDE/NEMATICIDE RATE PER ACRE FOR VARIOUS CORN ROW SPACINGS											
Maximum use rate allowed is 12.0 fl oz/A											
Rate (fl oz per 1000 row ft)	Rate (fl oz/A) at Indicated Row Spacing in Inches										
	15*	20	22	24	26	30	32	34	36	38	40
0.34	11.8	8.9	8.1	7.4	6.8	5.9	5.6	5.2	4.9	4.7	4.4
0.37		9.7	8.8	8.1	7.4	6.4	6.0	5.7	5.3	5.1	4.8
0.39		10.2	9.3	8.5	7.8	6.8	6.4	6.0	5.6	5.4	5.1
0.41		10.7	9.7	8.9	8.2	7.1	6.7	6.3	5.9	5.6	5.4
0.43		11.2	10.2	9.4	8.6	7.5	7.0	6.6	6.2	5.9	5.6
0.45		11.8	10.7	9.8	9.0	7.8	7.4	6.9	6.5	6.2	5.9
0.46		12.0	10.9	10.0	9.2	8.0	7.5	7.1	6.6	6.3	6.0
0.47			11.2	10.2	9.4	8.2	7.7	7.2	6.8	6.5	6.1
0.49			11.6	10.7	9.9	8.5	8.0	7.5	7.1	6.7	6.4
0.50			11.9	10.9	10.1	8.7	8.2	7.7	7.2	6.9	6.5
0.51				11.1	10.3	8.9	8.3	7.8	7.4	7.0	6.7
0.53				11.5	10.7	9.2	8.7	8.1	7.7	7.3	6.9
0.55				12.0	11.1	9.6	9.0	8.5	7.9	7.6	7.2
0.57					11.5	9.9	9.3	8.8	8.2	7.8	7.4
0.59					11.9	10.3	9.6	9.1	8.5	8.1	7.7
0.61						10.6	10.0	9.4	8.8	8.4	8.0
0.63						11.0	10.3	9.7	9.1	8.7	8.2
0.65						11.3	10.6	10.0	9.4	8.9	8.5

0.67		11.7	10.9	10.3	9.7	9.2	8.8
0.69		12.0	11.3	10.6	10.0	9.5	9.0

Shaded areas in chart above indicate that use rate per 1000 row ft is not permitted at specified row spacing.

*Rate on 15-inch row spacing is equivalent to rate in twin rows on 30-inch row spacing.

Application and Mixing Instructions

DURO LQ contains 2.1 pounds of bifenthrin and 0.35 pounds of abamectin per gallon. The rate of application depends on field history, anticipated pest pressure and scouting done in the prior cropping season. Use lower labeled rates under lighter pest pressure, and higher labeled rates under moderate to high pest pressure. In fields where corn rootworm larval damage has been significant in prior years and is expected to be moderate or higher in the current cropping season, use the maximum label rate of DURO LQ.

At Planting In-Furrow Treatment

Apply DURO LQ at planting time as an in-furrow treatment **ONLY** for control of corn rootworm larvae, corn nematodes and other seed attacking pests. **DO NOT** apply using any other placement, including T-band and banded applications.

Liquid in-furrow applications are to be applied into the open seed furrow at planting, through a microtube or spray nozzle directed into the seed furrow, behind the planter furrow openers and in front of the closing wheels such that product is completely covered with soil.

Dilute Application Directions:

Liquid in-furrow applications are recommended using water or liquid starter fertilizer as a carrier in a minimum application volume of 3 gallons per acre. Apply DURO LQ in a volume of water or liquid fertilizer which will ensure uniform placement in the furrow for best control of soil pests. When mixing in water or liquid fertilizer, fill the tank one-third to one-half of water or liquid fertilizer before adding DURO LQ to tank. Begin tank agitation if available and then add remaining amount of water or liquid fertilizer to the tank. Maintain agitation until the mixture has been applied.

Tank-Mixing with Liquid Fertilizers:

DURO LQ can be mixed with commonly used liquid starters or pop-up fertilizers which are allowed to be applied in-furrow at planting. Read and follow liquid fertilizer recommendations regarding seed safety and use guidelines. It is advisable to conduct a preliminary jar test using the appropriate ratio of liquid fertilizer and DURO LQ at rates to be applied. If planting delays occur and a tank mixture sits for 48 hours or longer, examine mixture and provide tank agitation if needed prior to resuming application.

STORAGE AND DISPOSAL

PESTICIDE STORAGE

Do not store near heat or open flame. Keep out of reach of children and animals. Store in original containers only. Store in a cool, dry place and avoid excess heat. Carefully open containers. After partial use, replace lids and close tightly. Do not put concentrate or dilute material into food or drink containers. Do not contaminate other pesticides, fertilizers, water, food or feed by storage or disposal.

In case of spill, avoid contact, isolate area and keep out animals and unprotected persons. Confine spills. Call Chemtrec: 1-800-424-9300

To confine spill: Dike surrounding area or absorb with sand, cat litter or commercial clay. Place damaged package in a holding container. Identify contents.

PESTICIDE DISPOSAL

Pesticide wastes are toxic. Improper disposal of excess pesticide, spray mixture, or rinsate is a violation of Federal law. If these wastes cannot be disposed of by use according to label instructions, contact your State Pesticide or Environmental Control Agency, or the Hazardous Waste representative of the nearest EPA Regional Office for guidance.

CONTAINER HANDLING

NONREFILLABLE CONTAINERS

Rigid, Nonrefillable containers small enough to shake (i.e. with capacities < 5 gallons).

Nonrefillable container. Do not reuse or refill this container. Triple rinse or pressure rinse container (or equivalent) promptly after emptying. Triple rinse as follows: Empty the remaining contents into application equipment or a mix tank. Fill the container 1/4 full with water and recap. Shake for 10 seconds. Pour rinsate into application equipment or a mix tank or store rinsate for later use or disposal. Drain for 10 seconds after the flow begins to drip. Repeat this procedure two more times. Then offer for recycling or reconditioning if available, or puncture and dispose of in a sanitary landfill, or by other procedures approved by state and local authorities.

Pressure rinse as follows: Empty the remaining contents into application equipment or a mix tank and continue to drain for 10 seconds after the flow begins to drip. Hold container upside down over application equipment or a mix tank or collect rinsate at about 40 PSI for at least 30 seconds. Drain for 10 seconds after the flow begins to drip. Once container is rinsed, offer for recycling if available, or puncture and dispose of in a sanitary landfill.

Rigid, Nonrefillable containers too large to shake (i.e. with capacities > 5 gallons)

Nonrefillable container. Do not reuse or refill this container. Triple rinse or pressure rinse (or equivalent) this container promptly after emptying. Triple rinse as follows: Empty the remaining contents into application equipment or a mix tank. Fill the container 1/4 full with water. Replace and tighten closures. Tip container on its side and roll it back and forth, ensuring at least one revolution, for 30 seconds. Stand the container on its end and tip it back and forth several times. Turn the container over onto its other end and tip it back and forth several times. Empty the rinsate into application equipment or a mix tank or store rinsate for later use or disposal. Drain for 10 seconds after the flow begins to drip. Repeat this procedure two more times.

Pressure rinse as follows: Empty the remaining contents into application equipment or a mix tank and continue to drain for 10 seconds after the flow begins to drip. Hold container upside down over application equipment or mix tank or collect rinsate for later use or disposal. Insert pressure rinsing nozzle in the side of the container, and rinse at about 40 PSI for at least 30 seconds. Drain for 10 seconds after the flow begins to drip.

Then offer this container for recycling, if available. If recycling is not available, dispose of in accordance with federal, state, and local regulations and procedures, which may include puncturing the properly rinsed container and disposing in a sanitary landfill.

FOR ALL REFILLABLE CONTAINERS, EXCEPT TRANSPORT CONTAINERS

Refillable container. Refill this container with pesticide only. Do not reuse this container for any other purpose.

Cleaning this container before refilling is the responsibility of the refiller. Cleaning this container before final disposal is the responsibility of the person disposing of the container. To clean this container before final disposal, empty the remaining contents from this container into application equipment or a tank-mix. Fill the container about 10 percent full with water. Agitate vigorously or recirculate water with the pump for 2 minutes. Pour or pump rinsate into application equipment or rinsate collection system. Repeat this rinsing procedure two more times. Then offer this container for recycling, if available.

LIMITED WARRANTY AND DISCLAIMER

The manufacturer warrants (a) that this product conforms to the chemical description on the label; and (b) that the directions, warnings, and other statements on this label are based upon responsible experts' evaluations of reasonable tests of effectiveness, of toxicity to laboratory animals and to plants and residues on food crops, and upon reports of field experience. Tests have not been made on all varieties of food crops and plants, or in all states or under all conditions. TO THE EXTENT CONSISTENT WITH APPLICABLE LAW, THIS WARRANTY DOES NOT EXTEND TO THE USE OF THIS PRODUCT CONTRARY TO LABEL INSTRUCTIONS, OR UNDER CONDITIONS NOT REASONABLY FORESEEABLE.

THERE ARE NO EXPRESS OR IMPLIED WARRANTIES OTHER THAN THOSE SET FORTH HEREIN. TO THE EXTENT CONSISTENT WITH APPLICABLE LAW, THE MANUFACTURER NEITHER MAKES NOR INTENDS, NOR DOES IT AUTHORIZE ANY AGENT OR REPRESENTATIVE, TO MAKE ANY OTHER WARRANTIES, EXPRESS OR IMPLIED, AND IT EXPRESSLY EXCLUDES AND DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY OF FITNESS FOR A PARTICULAR PURPOSE, OR ANY WARRANTY OF QUALITY OR PERFORMANCE. TO THE EXTENT CONSISTENT WITH APPLICABLE LAW, THIS WARRANTY DOES NOT EXTEND TO, AND THE BUYER SHALL BE SOLELY RESPONSIBLE FOR, ANY AND ALL LOSS OR DAMAGE WHICH RESULTS FROM THE USE OF THIS PRODUCT IN ANY MANNER WHICH IS INCONSISTENT WITH THE LABEL DIRECTIONS, WARNINGS OR CAUTIONS.

TO THE EXTENT CONSISTENT WITH APPLICABLE LAW, BUYER'S EXCLUSIVE REMEDY AND MANUFACTURER'S OR

SELLER'S EXCLUSIVE LIABILITY FOR ANY AND ALL CLAIMS, LOSSES, DAMAGES, OR INJURIES RESULTING FROM THE USE OR HANDLING OF THIS PRODUCT, WHETHER OR NOT BASED IN TORT, CONTRACT, NEGLIGENCE, STRICT LIABILITY IN TORT OR OTHERWISE, SHALL BE LIMITED, AT THE MANUFACTURER'S OPTION, TO REPLACEMENT OF, OR THE REPAYMENT OF THE PURCHASE PRICE FOR, THE QUANTITY OF PRODUCT WITH RESPECT TO WHICH DAMAGES ARE CLAIMED. TO THE EXTENT CONSISTENT WITH APPLICABLE LAW, MANUFACTURER OR SELLER SHALL NOT BE LIABLE FOR SPECIAL, INDIRECT OR CONSEQUENTIAL DAMAGES RESULTING FROM THE USE OR HANDLING OF THIS PRODUCT.

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SPECIMEN